

25PSCV01168 25PSCV01168

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-08-26

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C08%2F26%2F2026

Source SHA-256: 0e7c22896b65d561377a0efd5f1845366c50b445d1d0cf6e7fd69da4adc482d7

Case Number: 25PSCV01168 Hearing Date: August 26, 2026 Dept: H

Rodriguez v. Chedraui USA, Inc., dba El Super, et al., Case No. 25PSCV01168

ORDER ON DISCOVERY MOTIONS

1. Defendant Chedraui USA, Inc.'s Motion to Deem Requested Matters Admitted [Set One] is DENIED as moot except as to sanctions. Defendant's request for sanctions is GRANTED in the reduced sum of \$245.00. Sanctions are payable within 30 days from the date of the notice of ruling.

2. Defendant Chedraui USA, Inc.'s Motion to Compel Plaintiff's Responses to Form Interrogatories [Set One] is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling. Defendant's request for sanctions is GRANTED in the reduced sum of \$245.00. Sanctions are payable within 30 days from the date of the notice of ruling.

3. Defendant Chedraui USA, Inc.'s Motion to Compel Plaintiff's Responses to Special Interrogatories [Set One] is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling. Defendant's request for sanctions is GRANTED in the reduced sum of \$245.00. Sanctions are payable within 30 days from the date of the notice of ruling.

4. Defendant Chedraui USA, Inc.'s Motion to Compel Plaintiff's Responses to Requests for Production [Set One] is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling. Defendant's request for sanctions is GRANTED in the reduced sum of \$245.00. Sanctions are payable within 30 days from the date of the notice of ruling.

Background

Plaintiff Sofia Rodriguez ("Plaintiff") alleges that on July 29, 2024, she slipped on a liquid and fell at the El Super located at 1575 E. Holt Ave., Pomona, CA.

On April 1, 2025, Plaintiff filed a complaint, asserting causes of action against Chedraui USA, Inc., dba El Super, a business entity ("Defendant") and Does 1-100, inclusive, for: (1) Negligence and (2) Premises Liability.

A Post Mediation Status Conference/Case Management Conference is set for August 26, 2026.

1. Defendant's Motion to Deem Requests for Admissions Admitted

Legal Standard

"Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared" (Code Civ. Proc., § 2033.250, subd. (a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).) Unlike a motion to compel further discovery responses, a motion to deem RFA admitted does not have any meet and confer requirements.

It is mandatory that the court "impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).)

Discussion

Defendant moves for an order deeming its requested matters admitted. Defendant also requests sanctions in the amount of \$985.00 against Plaintiff and her counsel of record.

Defendant's counsel represents as follows:

Defendant propounded the Requests for Admissions, Set One ("RFAs") on Plaintiff on September 10, 2025. (Derflinger Decl., ¶ 2, Exh. A.) As of April 30, 2026 [FN1], Defendant has received neither a response nor a request for an extension. (Id., ¶ 3.) On February 12, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., Exh. B.) Defendant states that Plaintiff has failed to respond to the RFAs as of the filing of this motion. (Id., ¶ 5.)

The motion to deem the content of Defendant's Request for Admission, Set One, admitted is denied as moot except as to sanctions, inasmuch as verified responses to Requests for Admission were provided on August 20, 2026. (Ghermezian Decl. ¶ 4.) [FN2]

Sanctions

As noted above, it is mandatory that the court "impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).)

Defendant requests sanctions in the amount of \$985.00 (i.e. 2 hours for this Motion; 1 hour for Reply; and 2 hours to prepare for and attend the hearing for all four motions) at a rate of \$185/hour. (Derflinger Decl., ¶ 8.) Defendant also requests \$60.00 in costs. (Id.) While the Court finds the rate to be reasonable, the hours requested for attorneys' work are excessive for a

simple discovery motion.

Thus, the Court grants Defendant's request for sanctions against Plaintiff and her counsel of record in the reduced sum of \$245.00 (i.e., 1 hour for the motion plus \$60 filing fee). Sanctions are payable within 30 days from the date of the notice of ruling.

2. Defendant's Motion to Compel Responses to Form Interrogatories

Legal Standard

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2030.290.) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., § 2030.290, subd. (a).) A party moving to compel discovery responses under this statutory provision is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., §§ 2030.290, subd. (b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].)

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court "shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c).)

Discussion

Defendant moves the Court for an order compelling Plaintiff to provide verified responses to its First Set of Form Interrogatories. Defendant also seeks sanctions against Plaintiff and her counsel of record in the amount of \$1,260.00.

Defendant's counsel represents as follows: Defendant propounded the Form Interrogatories, Set One ("FROGs") on Plaintiff on September 10, 2025. (Derflinger Decl., ¶ 2, Exh. A.) As of April 30, 2026, Defendant has received neither a response nor a request for an extension. (Id., ¶ 3.) On February 12, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., Exh. B.) Defendant states that Plaintiff has failed to respond to the FROGs as of the filing of this motion. (Id., ¶ 4.)

The motion to compel Plaintiff's responses to Defendant's Form Interrogatories, Set One, is GRANTED. Plaintiff is to provide Code-compliant responses within 20 days from the notice of the ruling. [FN3]

Sanctions

Defendant requests sanctions in the amount of \$1,260.00 (i.e. 2 hours for this Motion; 1 hour for Reply; and 2 hours to prepare for and attend the hearing for all four motions) at a rate of \$240/hour. (Derflinger Decl., ¶ 7.) Defendant also requests \$60.00 in costs. (Id.) Per Defendant's motion to deem request for admission admitted, the Court reduces the rate to \$185/hour. The Court also finds the hours requested for attorneys' work are excessive for a simple discovery motion. In addition, an opposition has not been filed.

Thus, the Court grants Defendant's request for sanctions against Plaintiff and her counsel of record in the reduced sum of \$245.00 (i.e., 1 hour for the motion plus \$60 filing fee). Sanctions are payable within 30 days from the date of the notice of ruling.

3. Defendant's Motion to Compel Responses to Special Interrogatories

Legal Standard

See above.

Discussion

Defendant moves the Court for an order compelling Plaintiff to provide verified responses to its First Set of Special Interrogatories. Defendant also seeks sanctions against Plaintiff and her counsel of record in the amount of \$1,260.00.

Defendant's counsel represents as follows: Defendant propounded the Special Interrogatories, Set One ("SROGs") on Plaintiff on September 10, 2025. (Derflinger Decl., ¶ 2, Exh. A.) As of April 30, 2026, Defendant has received neither a response nor a request for an extension. (Id., ¶ 3.) On February 12, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., Exh. B.) Defendant states that Plaintiff has failed to respond to the SROGs as of the filing of this motion. (Id., ¶ 4.)

The motion to compel Plaintiff's responses to Defendant's Special Interrogatories, Set One, is GRANTED. Plaintiff is to provide Code-complaint responses within 20 days from the notice of this ruling. [FN4]

Sanctions

Defendant requests sanctions in the amount of \$1,260.00 (i.e. 2 hours for this Motion; 1 hour for Reply; and 2 hours to prepare for and attend the hearing for all four motions) at a rate of \$240/hour. (Derflinger Decl., ¶ 7.) Defendant also requests \$60.00 in costs. (Id.) Per Defendant's motion to deem request for admission admitted, the Court reduces the rate to \$185/hour. The Court also finds the hours requested for attorneys' work are excessive for a simple discovery motion. In addition, an opposition has not been filed.

Thus, the Court grants Defendant's request for sanctions against Plaintiff and her counsel of record in the reduced sum of \$245.00 (1 hour for the motion), including costs. Sanctions are payable within 30 days from the date of the notice of ruling.

4. Defendant's Motion to Compel Responses to Requests for Production

Legal Standard

If a party to whom inspection demands is directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., § 2031.300(a).) A party moving to compel discovery responses under this statutory provision is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., § 2031.300, subd. (b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].)

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

Discussion

Defendant moves the court for an order compelling Plaintiff to provide verified responses to its First Set of Requests for Production. Defendant also seeks sanctions against Plaintiff and her counsel of record in the amount of \$1,260.00.

Defendant’s counsel represents as follows: Defendant propounded the Requests for Production, Set One (“RFPs”) on Plaintiff on September 10, 2025. (Derflinger Decl., ¶ 2, Exh. A.) As of April 30, 2026, Defendant has received neither a response nor a request for an extension. (Id., ¶ 3.) On February 12, 2026, Defendant emailed opposing counsel regarding the discovery request. (Id., Exh. B.) Defendant states that Plaintiff has failed to respond to the SROGs as of the filing of this motion. (Id., ¶ 4.)

The motion to compel Plaintiff’s responses to Defendant’s Requests for Production, Set One, is GRANTED. Plaintiff is to provide Code-complaint responses within 20 days from the notice of the ruling. [FN5]

Sanctions

Defendant requests sanctions in the amount of \$1,260.00 (i.e. 2 hours for this Motion; 1 hour for Reply; and 2 hours to prepare for and attend the hearing for all four motions) at a rate of \$240/hour. (Derflinger Decl., ¶ 7.) Defendant also requests \$60.00 in costs. (Id.) Per Defendant’s motion to deem request for admission admitted, the Court reduces the rate to \$185/hour. The Court also finds the hours requested for attorneys’ work are excessive for a simple discovery motion. In addition, an opposition has not been filed.

Thus, the Court grants Defendant’s request for sanctions against Plaintiff and her counsel of record in the reduced sum of \$245.00 (i.e., 1 hour for the motion plus \$60 filing fee). Sanctions are payable within 30 days from the date of the notice of ruling.

[FN1] The Court notes that while Defendant’s counsel states Defendant has not received a response since April 30, 2025, due to his other declarations for the three other discovery motions all set to be heard on the same day stating the date as April 30, 2026 (see below), the Court finds this to be a Scrivener’s error and construes this date as April 30, 2026.

[FN2] Plaintiff’s counsel is admonished for filing an untimely declaration in opposition; particularly given the large volume of cases and motions pending before the Court at any given time, the Court expects counsel to adhere to court deadlines.

[FN3] Plaintiff’s declaration represented that responses would be provided by August 24, 2026; however, at least at this time, the Court has received no further information in this regard.

[FN4] See footnote 3.

[FN5] See footnote 3.